

Section 4.

SCHEDULE.

PROVISIONS OF PRINCIPAL ACT REPEALED.

PART I.

Provisions repealed from Commencement of Act.

Section 2.

In section 8 the words " garden or possession " in each place where those words occur.

In section 10 the word " Royal."

The Second Schedule.

PART II.

Provisions repealed upon expiration of One Year after Commencement of Act.

Section 4 (so far as unrepealed).

Section 9.

The First Schedule.

CHAPTER 37.

An Act to make better provision for the protection against lead poisoning of persons employed in painting buildings. [15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Regulations
as to use of
lead paint

1.—(1) The Secretary of State may make regulations for preventing danger from lead paint to persons employed in or in connection with the painting of buildings, and in particular—

(a) for prohibiting the use of any lead compound except in the form of paste or of paint ready for use;

- (b) for the prevention of danger arising from the application of lead paint in the form of spray;
- (c) for prohibiting dry rubbing down and scraping;
- (d) for providing for the periodical medical examination of persons employed in or in connection with painting with lead paint, and for the suspension from such employment of persons whose health is or appears likely to be injuriously affected thereby;
- (e) for securing that facilities for washing during, and on cessation of, work are afforded to persons employed in or in connection with painting;
- (f) for the use of protective clothing by persons so employed and for preventing clothes left off during work from being soiled by paint; and
- (g) for the distribution to persons so employed of instructions with regard to hygienic precautions to be taken.

(2) The provisions of sections eighty, eighty-one and eighty-four of the Factory and Workshop Act, 1901 (which relate to procedure in connection with the making of regulations), shall apply as respects regulations made under this section.

1 Edw. 7.
c. 22.

2. On and after the nineteenth day of November, nineteen hundred and twenty-seven, it shall not be lawful to employ any woman or young person in painting any part of a building with lead paint:

Prohibition
of employ-
ment of
women and
young per-
sons in
painting
buildings
with lead
paint.

Provided that this section shall not apply to the employment of

- (a) persons employed as apprentices in the painting trade under arrangements approved by an order of the Secretary of State made after consultation with the organisations, if any, representative of the employers and workers in the trade; or
- (b) women or young persons in such special decorative or other work (not being work of an industrial character) as may be excluded from the provisions of this section by an order of the Secretary of State; or

- (c) women who at the passing of this Act are employed in any trade which involves as part of their occupation such painting as aforesaid.

Application
of certain
provisions
of the Fac-
tory and
Workshop
Act, 1901.

3. The provisions of section seventy-three (which relates to notification of diseases in factories) so far as they relate to cases of lead poisoning, sections eighty-five and eighty-six (which relate respectively to breaches and publication of regulations), sections one hundred and nineteen to one hundred and twenty-one (which relate to powers and duties of inspectors), and Part IX. (which relates to legal proceedings) of the Factory and Workshop Act, 1901, shall apply in any case where persons are employed in painting buildings as if the places where they are employed were factories, and as if the persons by whom they are employed were the occupiers of the factories, and with such further or other modifications as may be made by order of the Secretary of State for the purpose of making those provisions applicable to the painting of buildings.

Registers,
returns, &c.

4.—(1) Every person who employs persons in painting buildings shall send to the Inspector of Factories for the district in which his office is situated a notice in writing stating his name and the address of his office, and shall keep at his office a register which shall be available for inspection by an inspector of factories at all reasonable times, containing such particulars as to the persons so employed by him, and as to the work on which they are employed as may be prescribed, and shall make such returns to the Inspector of Factories for the district as may be prescribed :

Provided that this section does not apply where the persons employed are persons whose ordinary occupation does not include the painting of buildings.

(2) Any person failing to comply with the requirements of this section shall be liable on summary conviction to a fine not exceeding three pounds.

Power to
take sam-
ples.

5.—(1) Where an inspector under the Factory and Workshop Act, 1901, suspects that any substance used or intended for use in painting a building contains a lead compound, he may at any time take for analysis sufficient samples of that substance.

(2) If any person who employs persons in painting buildings refuses to allow an inspector to take samples

in pursuance of this section, or to give him facilities for the purpose, he shall be liable on summary conviction to a fine not exceeding three pounds :

Provided that any such person may, at the time when a sample is taken under this section, and on providing the necessary appliances, require the inspector to divide the sample into two parts and to mark and seal and deliver to him one such part.

(3) A certificate purporting to be a certificate by the Government Chemist at the Government Laboratory as to the result of an analysis of a sample under this section shall, in any proceedings under this Act, be evidence of the matters stated therein, unless either party requires the person by whom the analysis was made to be called as a witness.

(4) It shall not be lawful for any person, except in so far as is necessary for the purposes of a prosecution for a contravention of this Act, to publish or disclose to any person the results of an analysis made under this section.

If any person acts in contravention of the provisions of this subsection, he shall be liable on summary conviction to a fine not exceeding fifty pounds.

6. This Act shall apply where persons are employed in painting buildings by or under the Crown in like manner as if the employers were private persons.

Application
to employ-
ment under
the Crown.
Definitions.

7. In this Act the expression "lead paint" means any paint, paste, spray, stopping, filling, or other material used in painting which, when treated in a manner prescribed by rules made by the Secretary of State, yields to an aqueous solution of hydrochloric acid, a quantity of soluble lead compound exceeding, when calculated as lead monoxide, five per cent. of the dry weight of the portion taken for analysis; and the expression "building" includes fixtures.

8.—(1) This Act may be cited as the Lead Paint (Protection against Poisoning) Act, 1926, and shall be construed as one with the Factory and Workshop Acts, 1901 to 1920.

Short title,
construc-
tion, com-
mencement
and extent.

(2) This Act shall come into operation on the first day of January, nineteen hundred and twenty-seven.

(3) This Act shall not extend to Northern Ireland.
